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File No.: EXP202318259

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: On February 8, 2024, the Director of the Spanish Agency for the Protection of Data agreed to initiate sanctioning proceedings against ADADE BURGOS, S.L. (hereinafter, the respondent), through the Agreement transcribed below:

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File No.: EXP202318259

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for the Protection of Data and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for the Protection of Data on August 13, 2021.

The complaint is directed against ADADE BURGOS, S.L. with NIF B09604091 (hereinafter, the respondent).

The reasons on which the complaint is based are as follows:

The complainant states that on ***DATE.1 he was dismissed for disciplinary reasons from the respondent entity.

On ***DATE.2 the entity sent an email to the clients who were attended by the complainant, informing them that he had ceased to provide services due to being dismissed for professional misconduct.

On ***DATE.3 the complainant exercised the right of access before the entity, requesting information about the recipients to whom his data was communicated, by what means, and the terms used to inform about matters related to his dismissal.

On ***DATE.4 the respondent entity addressed the right and informed him that the termination of the employment relationship had been communicated by email to the clients with whom the complainant had a professional relationship.

The complainant considers that this response does not satisfy his right to the extent that he has not been informed of the clients and suppliers to whom the email indicating that he had been dismissed was sent, nor the terms used to describe the aforementioned situation.

Along with the complaint, he submits the burofax sent to exercise the right and its response.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on October 22, 2021, this complaint was forwarded to the respondent, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on November 3, 2021, as evidenced by the acknowledgment of receipt in the file.

On December 10, 2021, a response was received by this Agency indicating that the respondent entity only communicated the name, first surname, and corporate email of the complainant to the clients to whom he had been providing services as an employee of the respondent entity.

The total number of clients to whom this personal data was communicated was (...).

The respondent entity states that this communication of the complainant's name, first surname, and corporate email was made in legitimate interest, both of the respondent entity and of the clients of said entity, to whom the complainant provided tax advice.

The complainant states that his exercise of the right of access has not been properly addressed because he has not been informed of the clients to whom the data has been communicated, clients well known to him as he provided them with his services.

Article 15.1. c) of Regulation (EU) 2016/679 establishes that the controller must inform about the recipients or categories of recipients to whom personal data has been communicated.

The respondent entity states that, in compliance with this article, it informed about the category of recipients (CLIENTS) to whom the complainant's name, first surname, and corporate email were communicated. Document 2 is attached as the response to the access exercise.

However, if the Spanish Agency for the Protection of Data deems it appropriate and sees no issues in safeguarding the privacy and confidentiality of the clients, the respondent entity has no problem in communicating the clients (well known to him).

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by the claimant because they were the clients to whom he provided services) to whom the name, first surname, and corporate email of the claimant were communicated.

THIRD: On November 13, 2021, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On May 12, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection, by virtue of which it was resolved to sanction ADADE BURGOS, S.L. (hereinafter, the appellant) because it sent an email to the clients who were attended by the claimant, a total of (...), to inform them that he had been dismissed for professional misconduct, providing more data than necessary to fulfill the intended purpose.

FIFTH: On January 8, 2024, the revocation of PS/00034/2022 was carried out, upon receiving on May 17, 2022, (five days after the resolution was issued), a letter from ADADE BURGOS indicating that they could not view the resolution through DEHÚ because the "CIF to which it is addressed corresponds to an extinguished company."

Along with this letter, a "Communication of accreditation card of the tax identification number" addressed by the AEAT to ADADE BURGOS, S.L., dated 12/18/2019, was submitted, where it is stated that the NIF of said entity is B09604091.

Access was made to the Mercantile Registry obtaining the following data:

- B09604091: Adade Burgos, S.L., with operations starting on 09/12/2019. c/ San Lesmes 6, Burgos.
 - B09289679: Adade Burgos, S.L., with operations starting on 11/16/1994. c/ San Lesmes 6, Burgos.
- Extinguished on 11/21/2019.

The Spanish Agency for Data Protection acknowledges the error made in notifying an incorrect NIF, as confirmed by the entity itself by providing the "Communication of accreditation card of the tax identification number" addressed by the AEAT to ADADE BURGOS, S.L., dated 12/18/2019, where it is stated that the NIF of said entity is B09604091.

Therefore, it is decided to revoke the resolution of the file EXP202103425, issued on May 12, 2022, in accordance with the provisions of Article 109 of Law 39/2015.

SIXTH: A new sanctioning procedure is initiated, within a new file, EXP202318259, for the events of 04/21/2021, which are not time-barred, according to Article 72.1 a) of the LOPDGDD.

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LEGAL GROUNDS

I

By virtue of the powers that Article 58.2 of the GDPR recognizes to each supervisory authority, and as established in Articles 47 and 48 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Article 5 of the GDPR establishes that “personal data shall be:

- a) processed lawfully, fairly, and transparently in relation to the data subject (‘lawfulness, fairness, and transparency’);
- b) collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes; in accordance with Article 89, paragraph 1, further processing of personal data for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes shall not be considered incompatible with the initial purposes (‘purpose limitation’);
- c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);
- d) accurate and, where necessary, kept up to date; all reasonable steps must be taken to ensure that personal data that are inaccurate are erased or rectified without delay (‘accuracy’);
- e) kept in a form which permits identification of data subjects for no longer than is necessary for the purposes of the processing of personal data; personal data may be stored for longer periods as long as they are processed solely for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, without prejudice to the application of appropriate technical and organizational measures imposed by this Regulation to protect the rights and freedoms of the data subject (‘storage limitation’);
- f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by means of appropriate technical or organizational measures (‘integrity and confidentiality’).

The data controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it (‘accountability’).”

We must also take into account that, regarding the right of access of the data subject, Article 15 of the GDPR establishes the following:

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“1. The interested party shall have the right to obtain from the data controller confirmation of whether or not personal data concerning them is being processed and, in such case, the right of access to the personal data and to the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged retention period for the personal data or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller the rectification or erasure of personal data or the restriction of processing of personal data concerning the interested party, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the interested party, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the interested party.”

III

In the present case, a complaint is made because on ***DATE, the entity being complained about sent an email to the clients who were being attended to by the complainant, a total of (...), informing them that the complainant had ceased to provide services for the entity being complained about due to being dismissed for professional misconduct.

In this regard, it should be noted that it is not a lack of standing, but rather that more data than

necessary has been disclosed to fulfill the intended purpose, and it is not justifiable to communicate the reason why the complainant no longer provides services to the entity being complained about, considering that the reasons for the termination of the employment relationship between employee and employer is a private matter that only concerns both parties and not third parties.

In the response given by the entity being complained about in this regard, it is acknowledged that the reason for the termination has been communicated to the clients, but there is no indication of the willingness to take measures to prevent it from happening again.

In light of the evidence available, it is considered that the reported facts could violate Article 5.1(c) of the GDPR, as indicated in legal basis II, since we are faced with unlawful processing of personal data, violating the principle of data minimization, which requires that the processing of personal data be adequate, relevant, and limited to what is strictly necessary in relation to the purposes for which their processing is required, in accordance with Article 5.1(c) of the GDPR.

It should be concluded that, regarding the right of access invoked by the complainant, this has been responded to by the entity being complained about, in accordance with Article 15 of the GDPR, as indicated in legal basis III.

IV

Article 72.1(a) of the LOPDGDD states that “based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.”

V

Article 58.2 of the GDPR provides as follows: “Each supervisory authority shall have all of the following corrective powers:

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time;

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

In light of the above, depending on the outcome of the investigation, the entity being complained about may be ordered to take the necessary actions within the designated time frame to ensure that the processing of the personal data used complies with the provisions of the GDPR.

VI

This infringement may be sanctioned with a fine of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount, in accordance with Article 83.5 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this article for the infringements of this Regulation referred to in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.”

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“Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damages they have suffered;

- b) the intentionality or negligence in the infringement;
 - c) any measures taken by the data controller or processor to mitigate the damages suffered by the affected parties;
 - d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;
 - e) any previous infringement committed by the data controller or processor;
 - f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
 - g) the categories of personal data affected by the infringement;
 - h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
 - i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;
 - j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
 - k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”
- Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any affected party.”

In accordance with the transcribed provisions, and without prejudice to the outcome of the procedure instruction, it is considered appropriate to gradate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR, considering as an aggravating factor the intentional action of the respondent in using the personal data of the complainant to cause harm, by using their personal data to indicate the termination of the employment relationship between the complainant and the respondent (Article 83.2 b).

For the purpose of determining the amount of the sanction to be imposed in this case on the entity complained against for an infringement classified in Article 83.5.a) of the GDPR, in an initial assessment, it is appropriate to gradate the sanction to be imposed on the respondent and set it at the amount of €5,000 in accordance with Article 58.2 of the GDPR.

Therefore, in light of the above,

By the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against ADADE BURGOS, S.L. with NIF B09604091 in accordance with the provisions of Article 58.2.b) of the GDPR, for the alleged infringement of Article 5.1 c) of the GDPR, classified in Article 83.5.a) of the GDPR and for prescription purposes, under Article 72.1 a) of the LOPDGDD.

SECOND: TO APPOINT B.B.B. as instructor and C.C.C. as secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into this sanctioning file, for evidentiary purposes, the complaint filed by

the complainants and its documentation, the documents obtained and generated by the General Subdirectorato of Data Inspection contained in file EXP202103425.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be €5,000 (five thousand euros) without prejudice to the outcome of the instruction.

FIFTH: TO NOTIFY this agreement to ADADE BURGOS, S.L. with NIF B09604091, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written submission of

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The party making allegations must provide their Tax Identification Number (NIF) and the procedure number that appears in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, if the sanction to be imposed is a fine, the party may acknowledge their responsibility within the period granted for making allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that is to be imposed in this procedure. With the application of this reduction, the sanction would be set at €4,000 (four thousand euros), concluding the procedure with the imposition of this sanction.

Similarly, at any time prior to the resolution of this procedure, the party may voluntarily pay the proposed sanction, which will result in a 20% reduction of its amount. With the application of this reduction, the sanction would be set at €4,000 (four thousand euros), and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for making allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph, €4,000 or €3,000, may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €3,000 (three thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that the party opts to proceed with the voluntary payment of either of the amounts indicated above, €4,000 or €3,000, they must make the payment by depositing it into account number ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which they are entitled.

Additionally, they must send the proof of payment to the General Subdirectorato of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement or, if applicable, from the draft initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

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Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no

administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection

SECOND: On February 23, 2024, the respondent has proceeded to pay the sanction in the amount of €3,000, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted for making allegations to the opening of the procedure, entails the renunciation of any action or appeal in the administrative route against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures," provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction."

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2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the imposition of the latter has been justified as inappropriate, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with respect to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202318259, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to ADADE BURGOS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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